Attorney Misconduct Online Complaint

To file an attorney misconduct complaint, please fill out the online form. **Please read the instructions below and then click Next at the bottom of this page to begin the complaint.**

For questions call 800-843-9053.

If you are unable to fill out the form online, you may print and mail the completed Complaint Form to the State Bar's Intake Department. Please note that the PDF forms cannot be filled out within the browser. You must download and complete your application or form using Adobe Acrobat Reader.

If you are a judicial officer or court staff reporting attorney misconduct, please use this Discipline Referral Form.

Instructions

Your Information

- Please provide your name, address, zip code, email address (if available), and telephone numbers (work, home and cell). Complaints are presumptively non-public unless charges are filed. So that we may promptly communicate with you, please provide an email address to which you have exclusive access and is not shared with others.
- If you are an attorney submitting a complaint about another attorney, please let us know and indicate whether your complaint is about opposing counsel and whether you are filing the complaint based on your duty to report professional misconduct under Rule of Professional Conduct 8.3. Additional information regarding filing a complaint under Rule 8.3 is contained in a series of FAQs. The State Bar encourages California attorneys to complete the complaint form in English.

  Disclosure of Complainant Information

- If your complaint proceeds to investigation, in the course of that investigation the State Bar ordinarily will disclose your identity as the complainant to the lawyer who is the subject of the complaint. If you would prefer not to have your identity as the complainant disclosed to the lawyer, please check the appropriate box on the complaint form, and the State Bar will attempt to honor your preference. However, if you are the client of the lawyer complained about, the State Bar will be required to disclose your identity to establish a waiver of attorney-client confidentiality for purposes of the investigation. Also, during the investigation the State Bar will be required to disclose to the lawyer the

facts and circumstances being investigated. See Rules of Procedure of the State Bar of California, Rule 2409(a) (“Prior to the filing of a Notice of Disciplinary Charges, the Office of Chief Trial Counsel shall notify the attorney in writing of the allegations forming the basis for the complaint . . . .”). Even if the State Bar does not identify you to the lawyer, these facts and circumstances may enable the respondent to identify you as the complainant. Finally, if the State Bar decides to proceed with filing disciplinary charges, the State Bar likely will be required to disclose your identity as the complainant as part of discovery in connection with a pre-filing settlement conference or with the disciplinary proceeding.

- You may submit a complaint anonymously. If you wish to do so, please check the appropriate box on the complaint form. If you submit an “anonymous” complaint but include information that would identify you, it is possible that the State Bar may be required to make the identifying information available to the respondent in connection with the pursuit of any disciplinary charges. In determining whether to report anonymously, please bear in mind the following:

    1. Reporting anonymously may make it more difficult for the State Bar to investigate and pursue disciplinary charges as it will not have a way to contact you to request additional information and, if you are the lawyer’s client, will not be able to establish a waiver of attorney-client confidentiality for purposes of the investigation.

    2. in investigating any complaint, the State Bar will be required to disclose to the respondent the facts and circumstances being investigated. See Rules of Procedure of the State Bar of California, Rule 2409(a) (“Prior to the filing of a Notice of Disciplinary Charges, the Office of Chief Trial Counsel shall notify

the attorney in writing of the allegations forming the basis for the complaint . . . .”). Even if the State Bar does not identify you to the lawyer, these facts and circumstances may enable the lawyer to identify you as the complainant.

Attorney’s Information

- You may use the State Bar’s online Attorney Search to see whether an attorney has a public record of prior discipline in California and whether the attorney is licensed to practice law in California.

- If submitting using the online form, in the “Attorney’s Information” section, use the first field to search for the attorney you are complaining about. Enter the bar number or name (last name first name, with no comma between). Do not try to fill in the fields below the search field. They will autopopulate with the results of the search.

- If submitting using a PDF or printout of the complaint form, please provide the full name, address and phone number of the attorney you are complaining about.

- If you wish to complain about more than one attorney, complete a separate statement of complaint for each attorney.

- If any of the blank spaces do not apply to your case, write N/A (Not Applicable). If you do not know the size of the attorney’s law firm, please state “Unknown” for Size of Law Firm.

- In the Statement of Complaint section, tell us in your own words what the attorney did or failed to do that you believe may warrant disciplinary action. We need to know the background of your case.

- If your complaint is about the attorney you hired, tell us: When did you hire the attorney? What agreement did you make with the attorney? Was the agreement verbal or in writing?

- If the complaint is about an attorney who has not represented you, please tell us: What is the connection you have with this attorney? If the attorney is representing a person or entity in a dispute with you, please identify that person or entity and explain the nature of the dispute.

Court Information

- If your complaint involves a court case, please provide information (if known) in this section.

Attachments

- As part of the online complaint form, you will be limited to 10 attachments, with a maximum of 4 MB each.

- Provide any helpful documents. Send only copies and keep the originals. All documents you send, originals or copies, become the property of the State Bar and are subject to future destruction.

  - If you are complaining about an attorney who represented you, provide copies of written fee agreements, payments or other communications (written or electronic) to the attorney. It may be helpful to provide copies of the front and back sides of all canceled checks and/or copies of receipts showing your payments to the attorney.

    - If you are complaining about some other attorney, provide any court documents or communications with the attorney which will help to explain your complaint.

    - If you are represented by counsel in the matter involving the attorney, please provide your attorney's name, address and telephone number.

- If you have already submitted a complaint and would like to add additional supporting documents, please click here.

Translation Information

The State Bar accepts complaints in over 200 languages. If you need translation services to communicate with the State Bar, please let us know by completing the Translation Information section. We will communicate with you through a translation service in the language of your choice. If you have a trusted friend or family member whom you would prefer to provide translation assistance and that person will accept communications from the State Bar in English, please provide their contact information in the Translation Information section.

After You Submit

The State Bar will review and evaluate your complaint to determine whether investigation and prosecution is appropriate. You will be notified of our decision in writing. This chart explains what happens after you file a complaint. Thank you for your cooperation.

Next

Protecting the public & enhancing the administration of justice.

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